Foreign Minister Chou En-lai's Statement on the U.S.-British Draft Peace Treaty with Japan And the San Francisco Conference

August 15, 1951

Supplement to People's China
Vol. IV, No. 5, September 1, 1951

Foreign Minister Chou En-lai's Statement on the U.S.-British Draft Peace Treaty with Japan And the San Francisco Conference

Chou En-lai, Minister for Foreign Affairs of the Central People's Government of the People's Republic of China, on August 15 made a statement on the United States-British Draft Peace Treaty with Japan and the San Francisco Conference. The text of the statement reads as follows:

On July 12, 1951, the Government of the United States of America and the Government of the United Kingdom published, simultaneously in Washington and London, a Draft Peace Treaty with Japan. A notification was subsequently issued on July 20 of the same year by the Government of the United States of America, calling for a conference at San Francisco in preparation for the signing of a separate peace treaty with Japan.

In connection with this matter, the Central People's Government of the People's Republic of China considers it necessary to authorise me to make the following statement:



Chou En-lai

The Central People's Government of the People's Republic of China considers that the Draft Peace Treaty with Japan as proposed by the United States and British Governments is a draft which violates international agreements and is therefore basically unacceptable and that the conference, scheduled to meet on September 4 at San Francisco, under the compulsion of the United States Government, which audaciously excludes the People's Republic of China, is a conference which repudiates international commitments and therefore basically cannot be recognised.

Whether considered from the procedure through which it was prepared or from its contents, the United States-British Draft Peace Treaty with Japan flagrantly violates those important international agreements to which the United States and British Governments were signatories, viz., the United Nations Declaration of January 1, 1942, the Cairo Declaration, the Yalta Agreement, the Potsdam Declaration and Agreement, and the Basic Post-Surrender Policy for Japan which was adopted by the Far Eastern Commission on June 19, 1947.

The United Nations Declaration provides that no separate peace should be made. The Potsdam Agreement states that the "preparatory work of the peace settlements" should be undertaken by those states which were signatories to the terms of surrender imposed upon the enemy state concerned.

Apart from that, the Central People's Government of the People's Republic of China has expressed its full agreement with the proposal of the Government of the Soviet Union that all states that participated with their armed forces in the war against Japan should take part in the preparation of the peace treaty with Japan.

However, after having refused for a long time to put into effect the principle embodied in the Potsdam Agreement and thus delayed the preparatory work for a peace treaty with Japan, the United States has monopolised the task of preparing the Draft Peace Treaty with Japan as now proposed, excluding most of the states that had fought against Japan and particularly the two principal Powers in the war, China and the Soviet Union, from the preparatory work for the peace treaty. Under the compulsion of the United States Government, a conference which excludes the People's Republic of China has been scheduled to meet in an attempt to conclude a separate peace treaty with Japan.

It is evident that in contravention of international agreements, the present action on the part of the United States Government, which has the support of the British Government, is intended to obstruct the conclusion of an over-all and genuine peace treaty between Japan and all those states which are in a state of war with Japan. The United States Government is also compelling Japan, as well as some

of the states at war with Japan, to accept a separate peace treaty that is only favourable to the United States Government, but not to the peoples of various countries, including those of the United States and Japan. It is in reality a treaty for preparing a new war and not a genuine peace treaty.

These observations of the Central People's Government of the People's Republic of China are irrefutably based on the basic contents of the United States-British Draft Peace Treaty with Japan.

FIRSTLY, since the United States-British Draft Peace Treaty with Japan is the product of the efforts of the United States Government and its satellites to seek a separate peace with Japan, it not only ignores the views set forth in a series of statements by the Governments of the Soviet Union and China in connection with the main objectives of a peace treaty with Japan, but also absurdly and openly excludes the Central People's Government of the People's Republic of China from the ranks of the Allied Powers at war with Japan.

After the First World War, Japanese imperialism began its armed aggression against China in 1931, started the aggressive war against the whole of China in 1937, but did not launch the war in the Pacific until 1941. In the course of the war to resist and defeat Japanese imperialism, the Chinese people, in the course of a bitter struggle of the longest duration, sustained the heaviest losses and made the greatest contribution. Thus, on the problem of a peace treaty with Japan, the Chinese people, and the Central People's Government which they have founded, are most legally entitled to have a voice and to be a participant. But the United States-British Draft Peace Treaty with Japan provides that its Article concerning the disposal of the property and rights or interests in Japan of the Allied Powers and their nationals during the war is applicable only to the period from December 7, 1941 to September 2, 1945, thus completely ignoring the period before December 7, 1941, when the Chinese people were carrying on the war against Japan single-handed.

This illegal and truculent action on the part of the United States and British Governments, which excludes the People's Republic of China and adopts a hostile attitude towards the Chinese people, can never be tolerated by the Chinese people, but will be determinedly opposed by them.

SECONDLY, the provisions on territory in the United States-British Draft Peace Treaty with Japan are designed entirely to suit the desire of the United States Government to extend its occupation and aggression.

On the one hand, the Draft Treaty ensures that the United States Government, in addition to the retaining of trusteeship over those Pacific islands which were formerly placed under Japanese mandate by the League of Nations, shall secure the trusteeship over the Ryukyu Islands, the Bonin Islands, the Volcano Islands, Rosario Island, Parece Vela and Marcus Island, thus actually retaining the right of continued occupation of these islands, whose separation from Japan has never been provided for in any previous international agreement.

On the other hand, in violation of the agreement under the Cairo Declaration, the Yalta Agreement and the Potsdam Declaration, the Draft Treaty only provides that Japan should renounce all rights to Taiwan and the Penghu Islands (the Pescadores) as well as to the Kurile Islands, the southern part of Sakhalin and all islands adjacent to it, without mentioning even one word about the agreement that Taiwan and the Pescadores be returned to the People's Republic of China and that the Kurile Islands be handed over to, and the southern part of Sakhalin and all islands adjacent to it be returned to, the Soviet Union.

The purpose of the latter omission is to attempt to create tense relations with the Soviet Union in order to cover up the extension of United States occupation. The purpose of the former omission is to enable the United States Government to prolong its occupation of Taiwan, a territory of China.

The Chinese people, however, can by no means tolerate such occupation and will never give up their sacred duty of liberating Taiwan and the Pescadores.

Moreover, the Draft Treaty stipulates that Japan should renounce all rights to Nan Wei Island (Spratly Island) and Si Sha Islands (the Paracel Islands), but again deliberately makes no mention of the problem of restoring sovereignty over them. As a matter of fact, just like all the Nan Sha Islands, Chung Sha Islands and Tung Sha Islands, Si Sha Islands (the Paracel Islands) and Nan Wei Island (Spratly Island) have always been China's territory. Although they had been occupied by Japan for some time during the war of aggression waged by Japanese imperialism, they were all taken over by the then Chinese Government, following Japan's surrender.

The Central People's Government of the People's Republic of China hereby declares: Whether or not the United States-British Draft Treaty contains provisions on this subject and no matter how these provisions are worded, the inviolable sovereignty of the People's Republic of China over Nan Wei Island (Spratly Island) and Si Sha Islands (the Paracel Islands) will not be in any way affected.

THIRDLY, as is well known, the foremost objectives of a peace treaty with Japan should be to make Japan a peace-loving, democratic, and independent nation, and to prevent the revival of militarism in Japan, thereby ensuring that Japan shall never again become an aggressive nation menacing the peace and security of Asia and of the world. However, the United States-British Draft Peace Treaty with Japan not only provides no guarantees in this regard, but on the contrary violates the provisions on such questions contained in the Potsdam Declaration and the Far Eastern Commission's Basic Post-Surrender Policy for Japan.

The Security and Political Clauses of the Draft Treaty contain no limitations whatever on the armed forces of Japan, place no ban on the remnant and

reviving militaristic organisations and provide no safeguard for the democratic rights of the people. As a matter of fact, the United States occupation authorities, through all the measures adopted in the past several years, have done their utmost to prevent the democratisation of Japan and to revive militarism in Japan.

The United States occupation authorities are not destroying Japan's ability to make war, but, in violation of the Far Eastern Commission's policy, are expanding Japan's military bases, training Japan's secret armed forces, reviving Japan's militaristic organisations, releasing Japan's war criminals and setting free a large number of purged elements. Especially in the war of intervention against Korea, the United States occupation authorities have already started to make use of Japan's manpower, and have restored and developed Japan's war industries, in order to support the United States military aggression.

In order to make it easy for the United States to prolong its occupation of Japan, not to withdraw its occupation forces, and to control Japan in such a manner as to make it an outpost of the United States aggression in the Orient, the Draft Treaty further stipulates that the Allied occupation forces, through an agreement with Japan, may remain in Japan for an extended period of time.

This scheme of the United States Government, which obviously violates the obligations under international agreements, has the support of the Yoshida government which is a political mainstay of the United States occupation of Japan. The United States Government and the Yoshida government are conspiring with each other to rearm Japan, to enslave the Japanese people, and to drive Japan once again onto the path of aggression, which had led Japan to the brink of destruction. It is also a path which reduces Japan to the status of a dependency and a colony, subordinate to the United States scheme of aggression, and obliged to pull the chestnuts out of the fire for the United States Government. This is a conspiracy to hinder the Japanese people from proceeding along another path which leads to peace, democracy, independence and happiness.

In accordance with the provisions of the abovementioned Draft Treaty, a United States-Japanese military agreement is now in secret negotiation. This military agreement in negotiation, just like the United States-British Draft Peace Treaty with Japan, is hostile towards China and the Soviet Union and menaces the security of those Asian states and peoples that have suffered from Japanese aggression in the past. Therefore, it is obvious that the eagerness of the United States and British Governments to conclude a separate peace treaty with Japan is not at all for the purpose of preventing the revival of militarism in Japan, promoting democracy in Japan and safeguarding the peace and security of Asia and of the world, but for the purpose of rearming Japan, and preparing a new world war of aggression for the United States Government and its satellites.

The Central People's Government of the People's Republic of China feels constrained to oppose this with determination.

FOURTHLY, for the purpose of stepping up its preparations for a new world war of aggression, the United States Government will certainly further tighten its control of Japan's economy.

The Central People's Government of the People's Republic of China has repeatedly declared that there should be no restriction on and monopoly of the development of Japan's peaceful economy and the normal trade relations between Japan and other states. However, since the United States-British Draft Peace Treaty with Japan is a separate peace treaty, which is hostile towards China and the Soviet Union and menaces the Asian states therefore its Economic Clauses also exclude China and the Soviet Union as well as many other states which cannot accept this Draft Treaty.

In addition, by taking advantage of the privileges which it has already secured in Japan's economy through American corporations, and of the restrictions which it has imposed on Japan's peaceful economy, the United States Government can further adapt these Economic Clauses to its monopolistic needs. Thus, if this separate peace treaty with Japan were concluded, the colonial status of Japan's economy, its dependence on that of the United States, would be worsened. Not only would Japan's war industry gear its production to the United States scheme of world war, but even industry in general would serve the United States economic aggression in Asia, while the normal trade relations between Japan and China and other neighbouring states for the purpose of developing peaceful economy and improving the people's livelihood would suffer from even more outrageous and unreasonable restrictions.

This would be a calamity for the Japanese people and other Asian peoples. The Central People's Government of the People's Republic of China deems it necessary to oppose it resolutely.

FIFTHLY, on the question of reparation, the Central People's Government of the People's Republic of China considers it necessary to clear up the confusion purposely created by the United States Government in the United States-British Draft Peace Treaty with Japan.

While admitting that Japan should in principle pay reparation for the damage and suffering caused by it during the war, the Draft Peace Treaty asserts that Japan lacks the capacity, if it is to maintain a sound economy, to make reparation and to meet its other obligations. On the surface, it seems as if the United States Government were most concerned about the soundness of Japan's economy, but actually during the six years of its occupation and control of Japan, the United States Government, by making use of the various privileges and restrictions, has stealthily taken and is still stealthily taking reparation from Japan, and has damaged and is still damaging Japan's economy.

The United States Government does not allow other states which had suffered from Japanese aggression to claim reparation from Japan. Its secret design, which it does not wish to divulge, is precisely to preserve Japan's capacity to make reparation and to meet other obligations for further exploitation by United States monopoly capital. If Japan, as it is

alleged, already lacks the capacity to make reparation and to meet other obligations, then it is the result of excessive spoliation and damage by the United States occupation authorities. If the United States Government abides by its obligations under international agreements, withdraws its occupation forces at an early date after the signing of a peace treaty, immediately stops the building of military bases, gives up the plan of rearming Japan and restoring the war industry of Japan, abolishes the privileges enjoyed by American business concerns in Japan's economy, and removes the restrictions imposed upon Japan's peaceful economy and Japan's normal foreign trade, then Japan's economy will be brought to a truly healthy state.

The Central People's Government of the People's Republic of China desires to see Japan capable of developing its peaceful economy in a healthy manner, and restoring and developing normal trade relations between China and Japan, so that the life of the Japanese people will be free from the menace and damage of war and the possibility of its real improvement may arise. Meanwhile, those states which were occupied by Japan, suffered great losses and have difficulties in rehabilitating themselves, should reserve their right to claim reparation.

The above-mentioned facts furnish sufficient proof that the United States-British Draft Peace Treaty with Japan completely violates international agreements, damages the interests of the Allied Powers at war with Japan, exhibits hostility to China and the Soviet Union, constitutes a menace to the peoples of Asia, disrupts the peace and security of the world, and is detrimental to the interests of the Japanese people.

In this Draft Peace Treaty with Japan, the United States Government together with its satellites pursues only one central objective, namely, the rearmament of Japan in order to continue and extend its war of aggression in Asia, as well as to intensify its preparations for a new world war.

This Draft Peace Treaty, therefore, is absolutely unacceptable to the Chinese people and other Asian peoples who were victims of Japanese aggression.

With a view to expediting the concluding of a separate peace treaty with Japan, the United States Government, in its notification for the convocation of the San Francisco Conference, openly excludes the People's Republic of China—the principal Power which had fought against Japan—and thus completely violates a stipulation in the United Nations Declaration of January 1, 1942, to the effect that each of the signatory Powers pledged itself not to make a separate peace.

It is abundantly clear that the convening of the San Francisco Conference under the compulsion of the United States Government to the exclusion of the People's Republic of China is for the purpose of creating division among the Allied Powers at war with Japan, and organising a new bloc of aggression in the Far East.

The so-called "Tripartite Security Treaty" between the United States, Australia and New Zealand and the United States-Japanese military agreement which is now being secretly negotiated, will both be concluded either during the Conference or thereafter, and will constitute a menace to the peace and security of the peoples throughout the whole Pacific area and in Asia.

At the San Francisco Conference, with the exclusion of the People's Republic of China from participation, it is impossible to conclude a joint peace treaty with Japan; even if the United States and its satellites proceed to conclude a separate peace treaty with Japan, the Chinese people cannot by any means recognise this Conference.

The Central People's Government of the People's Republic of China has always maintained that a peace treaty should, in the shortest possible time, be concluded with Japan on the basis of such principal international documents as the United Nations Declaration, the Cairo Declaration, the Yalta Agreement and the Potsdam Declaration and Agreement as well as the Basic Post-Surrender Policy for Japan adopted by the Far Eastern Commission; that it should be jointly prepared by the principal Powers that waged war against Japan with the participation of all the states that fought against Japan; that the treaty should be a joint and not a separate one; a just and reasonable treaty and not one that is coercive and monopolistic; a treaty for genuine peace and not one preparing for war.

In order to further the realisation of this aim, I was authorised by the Central People's Government of the People's Republic of China to make a statement on December 4, 1950 on the question of a peace treaty with Japan and send a note on May 22, 1951 to Mr. N. V. Roschin, Soviet Ambassador to China, expressing full agreement with the concrete proposals of the Government of the Soviet Union regarding the preparation of a peace treaty with Japan.

The Central People's Government considers that all the concrete proposals regarding a peace treaty with Japan as set forth in the above-mentioned statement and note still remain valid.

Now, the Central People's Government of the People's Republic of China once again declares: If there is no participation of the People's Republic of China in the preparation, drafting and signing of a peace treaty with Japan, whatever the contents and results of such a treaty, the Central People's Government considers it all illegal, and therefore null and void.

For the sake of really helping to restore peace in Asia, and to solve Far Eastern problems, the Central People's Government of the People's Republic of China firmly maintains that, on the basis of the proposal of the Government of the Soviet Union, a peace conference should be convened with the participation of the representatives of all the states that participated with their armed forces in the war against Japan, for the purpose of conferring on the problem of a joint peace treaty with Japan.

At the same time, on the basis of the United Nations Declaration, the Cairo Declaration, the Potsdam Declaration and Agreement, and the Basic Post-Surrender Policy for Japan adopted by the Far Eastern Commission, the Central People's Government of the People's Republic of China is ready to exchange views on the problem of a joint peace treaty with Japan with all the states that had participated in the war against Japan.

August 15, 1951.